

TENTATIVE RULING

Case: **MCG Land and Farms, LLC v. Steele, et al.**
Case No. CV2025-2469

Hearing Date: **March 26, 2026** **Department Eleven** **9:00 a.m.**

Defendants Christopher Steele and Capay Valley Ranches, Inc.’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendants’ demurrer to the third cause of action in the first amended complaint for negligence on the ground that it fails to state facts sufficient to constitute a cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that this cause of action is barred by the economic loss rule because the alleged special relationship between the parties cannot exist absent the Development Agreement. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 19-21, 37; FAC, attachments PLD-C-001(1) and PLD-PI-001(2), Exhibit A.) The Court further finds that plaintiff MCG Land and Farms, LLC, fails to show how an amendment can cure this defect. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **The People ex rel. Yolo-Solano Air Quality Management
District v. Defty
Case No. CV2024-1095**

Hearing Date: **March 26, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, plaintiff the People of the State of California ex rel. Yolo-Solano Air Quality Management District's motion for issuance of order to show cause, request for sanctions and attorneys fees is **CONTINUED** to **April 21, 2026**, at 9:00 a.m. in Department Eleven.